Meet-and-Confer – Joint Case-Management Plan – CV-25-03367-PHX-SMB

From Kevin Turnage <kdturnage@protonmail.com>

To Gray, Victoria (USAAZ)<Victoria.Gray2@usdoj.gov>

Date Sunday, February 15th, 2026 at 9:33 PM

Kevin D. Turnage
1003 E. Pinto Ct.
Gilbert, AZ 85296-3021
(901) 220-8664
kdturnage@protonmail.com
Pro Se Plaintiff

February 15, 2026

VIA E-MAIL AND CERTIFIED MAIL

Assistant United States Attorney
Office of the United States Attorney
District of Arizona
c/o Victoria Gray
Victoria.Gray2@usdoj.gov

Re: Case No. CV-25-03367-PHX-SMB
Request for a Joint Case-Management Plan and Status Conference

Dear Ms. Gray,

Pursuant to Local Rule 7.2(c) of the United States District Court for the District of Arizona, the parties are required to confer and file a **joint case-management plan** after a status-conference order is entered. I am writing to schedule that meet-and-confer and to exchange the proposed schedule I have prepared (see attached "Proposed Joint Case-Management Plan" –).

I propose a brief teleconference of no more than 30 minutes to discuss the following items:

1. The pending Motion for Leave to Serve a Third-Party Subpoena on Google LLC (Doc 51) and a timetable for an expedited ruling;
2. The Notice of Untimely Final Agency Decision and Motion to Compel a Final Agency Decision (Rule 5(l));
3. A tentative discovery schedule, including deadlines for initial disclosures, expert designations, and a discovery cutoff;
4. Timing for dispositive-motion briefs and a tentative trial date; and
5. Any other procedural matters the Court may wish to address.

Please let me know your availability within the next five (5) business days. I am available on any of the following dates and times (Phoenix Time):

* February 18, 2026 – 10:00 a.m. to 12:00 p.m.

* February 19, 2026 – 2:00 p.m. to 4:00 p.m.
* February 20, 2026 – 9:00 a.m. to 11:00 a.m.

If none of these slots work for you, please propose alternative dates and times.

I have also mailed a hard-copy of this request (including the proposed plan) by certified U.S. Mail on the next Postal Service Business Day of February 17, 2026. I look forward to your prompt response so that we can satisfy the meet-and-confer requirement and move this case forward.

Thank you for your cooperation.

Respectfully,

/s/ Kevin D. Turnage
Kevin D. Turnage
Plaintiff, Pro Se

26.76 KB 2 files attached

Joint Proposed Case Management Plan.docx 25.01 KB

publickey - kdturnage@protonmail.com - 0xCDB6543B.asc 1.75 KB

Pursuant to the Federal Rules of Civil Procedure and this Court's direction following Plaintiff's Request for a Status Conference, the parties submit this Joint Proposed Case Management Plan. This Court has the authority to manage its docket and ensure the timely progression of cases by ordering such a conference and plan. [5b4e77c9:0].

I. JURISDICTION AND VENUE

1. **Jurisdiction:** This Court has subject matter jurisdiction pursuant to 28 U.S.C. § 1331, as this action arises under Title VII of the Civil Rights Act of 1964, 42 U.S.C. § 2000e et seq., and the Rehabilitation Act of 1973, 29 U.S.C. § 701 et seq.
2. **Venue:** Venue is proper in the District of Arizona pursuant to 28 U.S.C. § 1391(b) as the events giving rise to the claims occurred within this judicial district.

II. SUMMARY OF CLAIMS AND DEFENSES

3. **Plaintiff's Claims:** Plaintiff asserts claims for employment discrimination (based on race, sex, and disability) and retaliation for engaging in protected EEO and whistleblowing activity, in violation of Title VII and the Rehabilitation Act.
4. **Defendants' Defenses:** Defendants deny Plaintiff's allegations and assert that all employment actions were taken for legitimate, non-discriminatory, and non-retaliatory reasons. Defendants may assert additional defenses, including but not limited to, failure to exhaust administrative remedies and failure to state a claim.

III. PROPOSED SCHEDULE AND DEADLINES

The parties propose the following schedule:

Event	Proposed Deadline
Initial Disclosures (Rule 26(a)(1))	March 2, 2026
Plaintiff's Expert Disclosures (Rule 26(a)(2))	July 17, 2026
Defendants' Expert Disclosures (Rule 26(a)(2))	August 14, 2026
Settlement Conference/ADR to be Completed	September 1, 2026
Discovery Cutoff	October 16, 2026
Dispositive Motions Deadline	November 16, 2026
Final Pretrial Conference	To be set by the Court
Trial Date	To be set by the Court

IV. DISCOVERY PLAN AND LIMITS

5. The parties agree that discovery should proceed on all non-privileged matters relevant to any party's claim or defense and proportional to the needs of the case, considering the importance of the issues at stake, the amount in controversy, the parties' relative access to relevant information, the parties' resources, the importance of the discovery in resolving the issues, and whether the burden or expense of the proposed discovery outweighs its likely benefit. [5b4e77c9:3]. The parties agree to abide by the discovery limits set forth in the Federal Rules of Civil Procedure unless modified by stipulation or Court order.

V. SPECIAL PROVISIONS

6. **Early Third-Party Subpoena (Google LLC):** Plaintiff has filed a Motion for Leave to Serve Third-Party Subpoena Prior to Rule 26(f) Conference (Doc. 51), which remains pending. Plaintiff requests that the Court rule on this

motion on an expedited basis to prevent the permanent spoliation of critical electronically stored information ("ESI"). Good cause exists for this early discovery because the need to preserve this evidence outweighs any prejudice to the responding party, and there are no alternative means to obtain the information. [5b4e77c9:2]; [5b4e77c9:5].

7. **ESI Protocol:** Within thirty (30) days of the entry of this Order, the parties shall meet and confer to establish a protocol for the discovery of ESI, including custodians, search terms, date ranges, and production formats.

8. **Protective Order:** The parties anticipate the need for a stipulated protective order to govern the exchange of confidential information, including personnel files and medical information, and will submit a proposed order to the Court within forty-five (45) days of the entry of this Order.

DATED this _____.

Respectfully submitted, By: By:

_____ _____

Kevin D. Turnage Plaintiff, Pro Se [Counsel for Defendants] [Bar No.] Attorneys for Defendants